**THE STATE**
**versus**
**ONIAS MUNGWANI**
**AND**
**NHAMO MBEDZI**
**AND**
**MGCINI NYONI**
**AND**
**PETER MUROMBO**

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 22 AND 25 SEPTEMBER 2025

*Assessors: - Mr T Sibanda*
*Mr Mbizo*

**Ruling: Application for Discharge at the close of State Case**

*Ms TC Mujokoro,* for the state
*Mr G Katenhaire,* for 1st, 3rd and 4th Accused persons
*Mr R Ndou,* for the second accused person

**NDUNA J: -** The accused persons appeared before the court charged with one count of murder. It is alleged they assaulted one Stewart Moyo to his death on 1st October 2020. They all pleaded not guilty to the charge, and the State led evidence from three witnesses and closed its case. The accused persons moved the court to find them not guilty and acquit them. The State opposes the application as they are adamant that they have established, as required, a *prima facie* case.

The evidence of the State is made up of a number of exhibits, which are the warned and cautioned statements of the accused persons and the post-mortem report. The language and tone of the warned and cautioned statements do not assist the State's case. On the manner of the alleged assault, the evidence of only one witness was led. It is to the effect that the witness observed what was going on as he stood afar. The assault, which may have taken place at the pit, the witness did not see as it was dark. He only perceived the accused persons coming with the deceased to where there was light. There were a number of people present, given as about 15. The witness does not know any of the about 11 who formed part of the group besieging the accused. In fact, in his

evidence-in-chief he states that he only saw the four with the deceased. He, however, did not see accused 4 amongst the alleged assailants.

It is against the evidence as alluded to above that the State wants the accused to be placed on their defence and answer to the allegations. The law is very clear on this aspect.In the case of *The Prosecutor-General of Zimbabwe v Richard Masvaire and Ors* HH 5-19, the court superbly postulated the essential requirements of the application for discharge of the accused at the close of the State case in the following remarks:

> "The legal position therefore, in an application brought in terms of s 198 (3), may be summarized as follows:
> a) an accused person is entitled to be discharged at the close of the case for the prosecution if there is no possibility of a conviction other than if he enters the witness box and incriminates himself;
> b) in deciding whether the accused is entitled to be discharged at the close of the State case, the court may take into account the credibility of the State witnesses, even if only to a limited extent;
> c) where the evidence of the State witnesses implicating the accused is of such poor quality that it cannot be relied upon, and there is accordingly no credible evidence on record upon which a court, acting carefully, may convict, an application for discharge should be granted."

The case of *Prosecutor-General of Zimbabwe v Richard Masvaire* (supra) established a three-pronged approach to the application for discharge. Firstly, the court must cautiously analyse whether there are essential elements for the offence in question. Secondly, the court must investigate whether any court acting carefully may properly convict the accused persons. Lastly, the court must critically assess whether the evidence adduced is palpably unreliable.

The State has the total duty to establish the accused's guilt. As was held in the case of *S v Mathebula & Anor* 1997 (1) SACR 10 (W) at 34J-35D where the court reasoned that:

> "The duty to prove an accused's guilt rests fairly and squarely on the shoulders of the State. As I said previously, the accused need not assist the State in any way in discharging this onus. If the State cannot prove any evidence against the accused at the end of the State's case, why should the accused be detained any longer and not be afforded his constitutional rights of being regarded as innocent and thus being acquitted and accorded his freedom? Can it be said that he was given a fair trial if, at the close of the State's case wherein no evidence was tendered to implicate him in the alleged crimes, the trial is then

> continued owing to the exercise of a discretion in the hope that some evidence implicating him might be forthcoming from the accused himself or his co-accused? To my mind, such a discretionary power to continue the trial would fly in the face of the accused's right to freedom, his right to be presumed innocent and remain silent, not to testify and not to be a compellable witness. To my mind, it would constitute a gross unfairness to take into consideration possible future evidence which may or may not be tendered against the accused either by himself or by other co-accused and for that reason decide not to set him free after the State had failed to prove any evidence against him."

In a similar vein, the court held as follows in *Attorney-General v Bvuma & Another* 1987 (2) ZLR 96 (S), 102:

> "It is, in my opinion, not a judicious exercise of the court's discretion to put an accused on his defence in order to bolster the State case — a case which, standing alone, cannot be proved. In this regard I prefer the approach of the English courts. In that approach an accused person is entitled to a discharge if there is no evidence against him or if that evidence does not prove some essential elements of the offence or the witnesses are discredited in cross-examination…"

In short, the state must prove a *prima facie* case against the accused person first before the accused is put to his defence. If the evidence adduced falls short of the required threshold, the court has no discretion but to discharge. The court is obliged to assess whether the evidence adduced is sufficient to prove a prima facie case before proceeding with the defence case.

There are quite a number of factors which render the evidence led by the State to be insufficient in its weight to accrue the holding of the defence case.

Now coming to the case before the court, the deceased fell into a pit. He fell as he ran away from the motor vehicle from which he had stolen a box of cooking oil. The depth of the pit has not been given, and hence we do not know how deep the pit was. The depth of the pit is an essential averment in this trial as its depth can enable the court to decide whether or not severe injuries or even fatal injuries could be suffered. Here

we have a thief who was in flight from a pursuer who then fell into the pit. The police did not see it necessary to measure the depth of the said pit.

Clearly, the evidence of the sole State witness on the relevant issue of assault needed to be supported by other witnesses. There is nothing that can be taken from the said evidence which can assist the court in coming up with a determination as to what really caused the death of the deceased. A number of witnesses' evidence had to be expunged from the record in the State summary because they are no longer locatable.

What the law requires at this stage is not the ultimate degree of proof of the allegations proof beyond reasonable doubt. It requires *prima facie* establishment of what the State is alleging. However, that must be from firm evidence, not that which is loose and very weak. The witness told the court that he did not observe the fourth accused at the scene. The fourth accused's role was to chase after the thief, and he managed to call for help after the thief had fallen into the pit. As soon as people came out, he surrendered his role and went away. Obviously, the fourth accused has no case to answer.

As regards the other accused persons, their case is very weak. We have a person who fell into a donga as he was being chased by the 4th accused. We are not told how he fell into the pit. It is not known what injuries he suffered as a result of the fall. Without the depth of the pit having been given, the court cannot make an evaluation of the fall either for the accused persons or the State. What happened after the fall has not been put before the court. The only witness who testified on that aspect did not see and cannot state whether or not the deceased was assaulted. Even when the sole witness tried to state that the deceased was assaulted at a spot where there was light, he is not eloquent on how he was assaulted.

The assaults are denied by the accused persons. We needed cogent evidence of the assault in order for a conclusion to be reached that the deceased may have been assaulted. The accused, in their warned and cautioned statements, attribute the assault to some other individuals. It was proper for the State to have called the said individuals

or led some cogent evidence which eliminated the possibility of the assault by those individuals.

Clearly, there is value in the denials of assaulting the deceased given by the accused. Their denials demanded to be answered by the State in its evidence before the closure of the State case, and that was not done. As has been stated, the defence outlines of the accused persons help to establish what really is in issue between the State and the accused, and map the evidence required from the State. In the absence of such evidence, the case remains raw and unproven enough to call the accused to answer it.

This is a case where a discharge of all the accused has to be ordered. They are accordingly found not guilty and discharged in terms of section 198(3) of the Code.

*The National Prosecuting Authority*, state's legal practitioners
*Mutuso, Taruvinga and Mhiribidi*, 1st, 3rd and 4th accused's legal practitioners
*Samp Mlaudzi and Partners*, 2nd accused's legal practitioners